

SENATE BILL 1471

By Walley

AN ACT to amend Tennessee Code Annotated, Title 47,
Chapter 18; Title 53 and Title 68, relative to
identifying the origins of food.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 53, Chapter 1, is amended by adding
the following as a new part:

53-1-401.

As used in this part, unless the context otherwise requires:

(1) "Country of origin" means each country in which an animal, from
which a covered commodity is derived, is born, raised, slaughtered, or
substantially transformed;

(2) "Covered commodity":

(A) Means:

(i) Farm-raised fish; and

(ii) Wild fish; and

(B) Does not include farm-raised fish or wild fish that is an
ingredient in processed food;

(3) "Farm-raised fish" has the same meaning as defined in 7 U.S.C. §
1638;

(4) "Food establishment" has the same meaning as defined in § 53-8-
103;

(5) "Processed food" means a food product derived from the combination
of a covered commodity with one (1) or more other agricultural commodity so as

to render the covered commodity inseparable or indistinguishable from the other agricultural commodity or commodities; and

(6) "Wild fish" has the same meaning as defined in 7 U.S.C. § 1638.

53-1-402.

(a) A person who supplies a covered commodity to a food establishment shall disclose the country of origin of the covered commodity to the food establishment.

(b) Subject to the exceptions in § 53-1-406, a food establishment selling or providing a covered commodity that originated outside of the United States shall provide notice of the country of origin of the covered commodity, or state that the covered commodity is imported:

(1) In letters no smaller than the same size, font, and shade as the covered commodity being offered is listed, by means of a label, stamp, mark, placard, or other visible sign on the package, display, holding unit, or bin containing the covered commodity at the final point of sale; or

(2) By posting a sign that measures not less than eight and one-half inches (8.5") wide by eleven inches (11") tall, placed not less than thirty-six inches (36") from the floor located in a conspicuous location where the covered commodity is held for offer, and using English letters not less than one inch (1") in size.

53-1-403.

(a) A person who supplies a covered commodity to a food establishment shall disclose to the food establishment whether the covered commodity is farm-raised fish or wild fish.

(b) Subject to the exceptions in § 53-1-406 and except as provided in subsection (c), a food establishment selling or providing a covered commodity shall provide notice of whether the covered commodity is farm-raised fish or wild fish:

(1) In letters no smaller than the same size, font, and shade as the covered commodity being offered is listed, by means of a label, stamp, mark, placard, or other visible sign on the package, display, holding unit, or bin containing the covered commodity at the final point of sale; or

(2) By posting a sign that measures not less than eight and one-half inches (8.5") wide by eleven inches (11") tall, placed not less than thirty-six inches (36") from the floor located in a conspicuous location where the covered commodity is held for offer, and using English letters not less than one inch (1") in size.

(c) Subsections (a) and (b) do not apply to crab, lobster, oyster, crayfish, clam, or scallops.

53-1-404.

This part does not prohibit a food establishment from using a label, stamp, mark, placard, or sign to identify the origin of a covered commodity with the United States as its country of origin.

53-1-405.

(a) Upon receipt of a verified complaint alleging a violation of this part, the commissioner, or the commissioner's designee, shall:

(1) Investigate the alleged violation; and

(2) Provide a copy of the complaint to the alleged violator.

(b) If the commissioner, or the commissioner's designee, determines that a violation of this part has occurred, the commissioner shall assess a civil penalty as follows:

(1) For a first violation, a written warning;

(2) For a second violation occurring within twenty-four (24) months of the first violation, a civil penalty of one hundred dollars (\$100) for each covered commodity for which a disclosure required by this part was not made;

(3) For a third violation occurring within twenty-four (24) months of the first violation, a civil penalty of two hundred fifty dollars (\$250) for each covered commodity for which a disclosure required by this part was not made;

(4) For a fourth violation occurring within twenty-four (24) months of the first violation, a civil penalty of five hundred dollars (\$500) for each covered commodity for which a disclosure required by this part was not made; and

(5) For a fifth or subsequent violation occurring within twenty-four (24) months of the first violation, a civil penalty of one thousand dollars (\$1,000) for each covered commodity for which a disclosure required by this part was not made.

(c) If the commissioner, or the commissioner's designee, determines that a food establishment unknowingly violated this part due to a good faith reliance upon the supplier's disclosure of the covered commodity's country of origin under § 53-1-402(a), or whether the covered commodity is farm-raised fish or wild fish under § 53-1-403(a), then the commissioner shall not assess a penalty against the food establishment.

(d) The commissioner, or the commissioner's designee, shall give a violator written notice of the intent to assess a civil penalty and the opportunity to appear before the commissioner, or the commissioner's designee, to show cause why the penalty

should not be assessed. Upon finding that a civil penalty should be assessed, the commissioner, or the commissioner's designee, shall issue an order to the violator. If a monetary civil penalty has not been paid in full within ninety (90) days after the entry of the order, the commissioner, or the commissioner's designee, shall refer the matter to the attorney general and reporter for collection, and the violator shall be liable for all expenses associated with the enforcement action, including court costs and attorneys' fees.

(e) Appeals of any decision to assess a civil penalty pursuant to this section must be undertaken pursuant to the normal procedures for appeal of agency decisions in the Uniform Administrative Procedures Act, compiled in title 4, chapter 5, part 3.

(f) The moneys collected as civil penalties under this section shall be paid into the operational account of the department of agriculture and used for the enforcement of this part.

53-1-406.

This part does not apply to the following:

- (1) A retailer that is required to inform consumers of the country of origin of a covered commodity as provided in 7 U.S.C. §§ 1638 - 1638d;
- (2) A hospital, as defined in § 68-11-201; and
- (3) A group of ten (10) or more individuals who preorder their food items.

SECTION 2. Tennessee Code Annotated, Section 53-1-116, is amended by deleting the language "§ 68-14-302" and substituting "§ 68-14-703".

SECTION 3. Tennessee Code Annotated, Title 68, Chapter 14, is amended by adding the following as a new part:

68-14-901.

As used in this part, unless the context otherwise requires:

(1) "Commissioner" means the commissioner of health;

(2) "Country of origin" means each country in which an animal, from which a covered commodity is derived, is born, raised, slaughtered, or substantially transformed;

(3) "Covered commodity":

(A) Means:

(i) Farm-raised fish; and

(ii) Wild fish; and

(B) Does not include farm-raised fish or wild fish that is an ingredient in processed food;

(4) "Farm-raised fish" has the same meaning as defined in 7 U.S.C. § 1638;

(5) "Food service establishment" has the same meaning as defined in § 68-14-703;

(6) "Processed food" means a food product derived from the combination of a covered commodity with one (1) or more other agricultural commodity so as to render the covered commodity inseparable or indistinguishable from the other agricultural commodity or commodities; and

(7) "Wild fish" has the same meaning as defined in 7 U.S.C. § 1638.

68-14-902.

(a) A person who supplies a covered commodity to a food service establishment shall disclose the country of origin of the covered commodity to the food service establishment.

(b) Subject to the exceptions in § 68-14-906 and except as provided in subsection (c), a food service establishment that prepares a covered commodity that

originated outside of the United States on-premises, which it sells or provides to consumers, shall provide notice of the country of origin of the covered commodity, or state that the covered commodity is imported as follows:

(1) If the food service establishment uses a menu as a standard business practice, the food service establishment shall:

(A) Print on all menus on which a covered commodity is listed the country of origin of the covered commodity, or denote that the covered commodity is imported, in letters no smaller than the same size, font, and shade as the covered commodity being offered is listed, immediately adjacent to the menu listing of the covered commodity being offered;

(B) Attach to all menus on which a covered commodity is listed, immediately adjacent to the listing of a covered commodity, an addendum that states the country of origin of the covered commodity, or denotes that the covered commodity is imported, in letters no smaller than the same size, font, and shade as the covered commodity being offered is listed on the menu; or

(C) By posting a sign that states the country of origin of the covered commodity or denotes that the covered commodity is imported. The sign must measure not less than eight and one-half inches (8.5") wide by eleven inches (11") tall, be placed not less than thirty-six inches (36") from the floor located in a conspicuous location where the covered commodity is held for offer, and use English letters not less than one inch (1") in size; or

(2) If the food service establishment does not use a menu as a standard business practice, the food service establishment shall post a sign that meets the requirements described in subdivision (b)(1)(C).

(c) A food service establishment that complies with the requirements for labeling imported catfish under § 53-1-116 is not required to comply with the notice requirements of subsection (b) with regard to such imported catfish.

68-14-903.

(a) A person who supplies a covered commodity to a food service establishment shall disclose to the food service establishment whether the covered commodity is farm-raised fish or wild fish.

(b) Subject to the exceptions in § 68-14-906 and except as provided in subsection (c), a food service establishment that prepares a covered commodity that originated outside of the United States on-premises, which it sells or provides to consumers, shall provide notice of whether the covered commodity is farm-raised fish or wild fish as follows:

(1) If the food service establishment uses a menu as a standard business practice, the food service establishment shall:

(A) Print on all menus on which a covered commodity is listed whether the covered commodity is farm-raised fish or wild fish in letters no smaller than the same size, font, and shade as the covered commodity being offered is listed, immediately adjacent to the menu listing of the covered commodity being offered;

(B) Attach to all menus on which a covered commodity is listed, immediately adjacent to the listing of a covered commodity, an addendum that states whether the covered commodity is farm-raised fish or wild fish

in letters no smaller than the same size, font, and shade as the covered commodity being offered is listed on the menu; or

(C) By posting a sign that states whether the covered commodity is farm-raised fish or wild fish. The sign must measure not less than eight and one-half inches (8.5") wide by eleven inches (11") tall, be placed not less than thirty-six inches (36") from the floor located in a conspicuous location where the covered commodity is held for offer, and use English letters not less than one inch (1") in size; or

(2) If the food service establishment does not use a menu as a standard business practice, the food service establishment shall post a sign that meets the requirements described in subdivision (b)(1)(C).

(c) Subsections (a) and (b) do not apply to crab, lobster, oyster, crayfish, clam, or scallops.

68-14-904.

This part does not prohibit a food service establishment from using a label, stamp, mark, placard, or sign to identity the origin of a covered commodity with the United States as its country of origin.

68-14-905.

(a) Upon receipt of a verified complaint alleging a violation of this part, the commissioner, or the commissioner's designee, shall:

(1) Investigate the alleged violation; and

(2) Provide a copy of the complaint to the alleged violator.

(b) If the commissioner, or the commissioner's designee, determines that a violation of this part has occurred, the commissioner shall assess a civil penalty as follows:

(1) For a first violation, a written warning;

(2) For a second violation occurring within twenty-four (24) months of the first violation, a civil penalty of one hundred dollars (\$100) for each covered commodity for which a disclosure required by this part was not made;

(3) For a third violation occurring within twenty-four (24) months of the first violation, a civil penalty of two hundred fifty dollars (\$250) for each covered commodity for which a disclosure required by this part was not made;

(4) For a fourth violation occurring within twenty-four (24) months of the first violation, a civil penalty of five hundred dollars (\$500) for each covered commodity for which a disclosure required by this part was not made; and

(5) For a fifth or subsequent violation occurring within twenty-four (24) months of the first violation, a civil penalty of one thousand dollars (\$1,000) for each covered commodity for which a disclosure required by this part was not made.

(c) If the commissioner, or the commissioner's designee, determines that a food service establishment unknowingly violated this part due to a good faith reliance upon the supplier's disclosure of the covered commodity's country of origin under § 68-14-902(a), or whether the covered commodity is farm-raised fish or wild fish under § 68-14-903(a), then the commissioner shall not assess a penalty against the food service establishment.

(d) The commissioner, or the commissioner's designee, shall give a violator written notice of the intent to assess a civil penalty and the opportunity to appear before the commissioner, or the commissioner's designee, to show cause why the penalty should not be assessed. Upon finding that a civil penalty should be assessed, the commissioner, or the commissioner's designee, shall issue an order to the violator. If a

monetary civil penalty has not been paid in full within ninety (90) days after the entry of the order, the commissioner, or the commissioner's designee, shall refer the matter to the attorney general and reporter for collection, and the violator shall be liable for all expenses associated with the enforcement action, including court costs and attorneys' fees.

(e) Appeals of any decision to assess a civil penalty pursuant to this section must be undertaken pursuant to the normal procedures for appeal of agency decisions in the Uniform Administrative Procedures Act, compiled in title 4, chapter 5, part 3.

(f) The moneys collected as civil penalties under this section shall be paid into the operational account of the department of health and used for the enforcement of this part.

68-14-906.

This part does not apply to the following:

- (1) A retailer that is required to inform consumers of the country of origin of a covered commodity as provided in 7 U.S.C. §§ 1638 - 1638d;
- (2) A hospital, as defined in § 68-11-201; and
- (3) A group of ten (10) or more individuals who preorder their food items.

SECTION 4. This act takes effect July 1, 2026, the public welfare requiring it.